LAWS OF SOUTH SUDAN

NATIONAL REVENUE AUTHORITY ACT, 2016

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SCHEDULE 1

NATIONAL REVENUE AUTHORITY Act, 2016

In accordance with the provisions of Articles 55(3)(b), 85(1), 177 and Schedule A (40) of the Constitution, the National Legislative Assembly, with the assent of the President, hereby enacts the following:

CHAPTER I
PRELIMINARY PROVISIONS

Section 1:Title and Commencement

This Act may be cited as the "National Revenue Authority Act, 2016," and shall come into force on the date of its signature by the President.

Section 2:Repeal and Saving

Any existing legislation in the Republic of South Sudan governing the subject of this Act is hereby repealed; provided that all appointments, proceedings, orders and regulations taken or made under the repealed legislation, except to the extent they are repealed or otherwise inconsistent with this Act, shall remain in force until repealed or amended.

Section 3:Purpose

The purpose of this Act is to provide for:

(1) The establishment of an institution to be known as "National Revenue Authority", hereafter referred to as NRA;

(2) Definition of the duties, functions and responsibilities of the NRA;

(3) Taking over the responsibilities and assets of the directorates of customs and taxation and non-tax collecting agencies;

(4) The transfer of any other revenue collecting responsibilities of other governmental organizations to the NRA; and

(5) Any other matters related to the establishment of NRA.

Section 4:Authority and Application

This Act is in accordance with the provisions of Articles 52, 142 and 177 (1) and (2), read together with the provisions of paragraphs (22), (23) and (40) of Schedule (A), of the Transitional Constitution of the Republic of South Sudan, 2011, which grant the National Government legislative powers to establish the National Revenue Authority and to legislate on the collection of national taxes, customs, excise duties, user charges and fees.

Section 5:Interpretations

In this Act, unless the context otherwise requires, the following words and expressions shall bear the meaning assigned to them respectively:

"**Assembly**" means the National Legislative Assembly of South Sudan;

"**Authority**" means the National Revenue Authority established under Section 6;

"**Board**" means the Board of Directors of the Authority established under Section 7;

"**BSS**" means Bank of South Sudan;

"Chairperson" means the Chairperson of the Board designated as such under Section 7;

"Commissioner-General" means the Chief Executive Officer of the Authority appointed under Section 16 of this Act;

"Constitution" Means the Transitional Constitution of the Republic of South Sudan, 2011

"**Court**" means Court of the Magistrate of the first class.

"Deputy Commissioner-General" means the Deputy Chief Executive Officer of the Authority;

"Commissioner" refers to the head of a body as may be assigned in the NRA.

"Director" means a member of the governing Board or head of a directorate as the context may require;

"Good faith" shall have the meaning assigned to it in the penal code

"GRSS" means the Government of the Republic of South Sudan;

"Minister" means National Minister of Finance and Economic Planning;

"Ministry "means National Ministry of Finance and Economic planning;

"NRA" means the National Revenue Authority;

"President" means the president of the Republic of South Sudan

"Revenue" means taxes, duties, fees, levies, charges, penalties, fines or other monies collected or imposed as defined in the Constitution Article 177 (2) and under the written laws set out in Schedule 1 of this document, and any other laws of GRSS.

"State" means any of the States and Administrative Areas in the Republic of South Sudan.

CHAPTER II

ESTABLISHMENT, FUNCTIONS AND POWERS OF THE AUTHORITY

Section 6: Establishment and Mandate of the Authority

(1) There is established a National Revenue Authority (NRA), which shall be:

(a) A body corporate with perpetual succession and a common seal;

(b) Autonomous and shall fall under the general supervision of the Minister and regularly reporting to the National Legislative Assembly;

(c) Capable of initiating or defending against any legal action in respect of any right or obligation acquired or incurred by the Authority;

(d) Capable of holding, purchasing, contracting and otherwise acquiring and disposing of, seizing or attaching any property,

moveable and immoveable, for purpose of, or in the course of carrying out its functions; and

(e) Performing any other relevant activities and duties thereof.

(2) The Authority shall be responsible for:

(a) Assessing, collecting, remitting and accounting for revenues due to the national government;

(b) Administering and enforcing the laws or the specified provisions of the laws set out in Schedule 1;

(c) Promoting voluntary tax compliance by taxpayers as required by law or regulations;

(d) Taking such measures as may be required to counter-act tax and customs fraud and any other forms of tax evasion;

(e) Establishing and maintaining electronic information management systems to increase efficiency, transparency and productivity of the revenue administration;

(f) Implementing agreements and MOUs related to revenue administration programs between the GRSS, regional and International organizations, and memoranda on matters relating to imports/exports exemptions, trade facilitation and other related issues.

(3) The Authority in the discharge of its functions shall:

(a) Study laws under its administration and those that may affect it and identify amendments for the purpose of improving the administration of and compliance with the laws it administers;

(b) Study the administrative costs, compliance costs, and the operational impact of intended legislative changes or rates and advice GRSS and State institutions accordingly;

(c) Collect and process statistics needed to provide revenue forecasts of receipts and the effect on yield of any proposals for changes in the revenue laws;

(d) Design and conduct training programs for employees so as to upgrade their knowledge and skills;

(e) Establish and implement a written code of conduct for all employees of the Authority; and

(f) Take such other measures as the Authority deems necessary or desirable for the implementation of provisions of this Act.

(4) The Authority shall be comprised of divisions, subdivisions, directorates or departments as necessary for the efficient and effective revenue administration in accordance with this Act and related laws.

(5) The organizational structure shall be as per the Commissioner-General's recommendation and subject to the Board's approval. After the Board's approval, the Board shall send the same to the Minister who shall table it to the Council of Ministers for final approval.

(6) The Authority shall have its head office in the Capital of GRSS and may establish branches necessary to fulfil its responsibilities in the States, Areas and counties in accordance with this Act.

CHAPTER III

COMPOSITION, RESPONSIBILITIES AND POWERS OF THE BOARD

Section 7:Composition of the Board

There shall be established a Board of Directors for the Authority comprising of nine (**9) directors**, as follows:

(a) A chairperson.

(b) Five (5) members, that is: Commissioner-General, who shall be a non-voting member; one representative from the Ministry of Finance; one from the Ministry of Trade, Industry and Investment; one from the Ministry of Justice; and one from the Bank of South Sudan;

(c) Three (3) members from civil society institutions and private sector. The selection process shall be defined in regulations or guidelines issued by the Minister.

Section 8:Responsibilities of the Board

(1) The Board is responsible for overseeing the Authority including but not limited to approving organizational structures, general policies of the Authority including resources, services, property, personnel and contracts;

(2) The Board in the discharge of its responsibilities under Subsection (1) above shall provide oversight over the Commissioner-General

in connection with the implementation of the policies of the Authority.

(3) The Board may recommend to the Minister the termination of the service of the Commissioner-General for:

(a) Violation, misconduct or malpractices of the terms set in the code of conduct of the Authority; or

(b) Inability, incapacity or incompetence to perform the duties of his/her office.

(4) The Board is responsible for the approval of the corporate business plan referred to in Section 48 and the NRA's Strategic Plan.

(5) Notwithstanding any provision of this Act to the contrary, the Board shall not intervene in day to day running of the Authority.

Section 9: Appointment and Tenure of Directors

(1) Members of the Board of Directors including the Chairperson except ex-officio members shall be appointed by the President on the recommendation of the Minister to hold office for a term of not more than five years; and

(2) Shall be eligible for reappointment for one further term not exceeding five years.

Section 10: Qualifications and Eligibility of Directors:

(1) Qualification of Directors shall be based on work experience of not less than ten (10) years and at least a bachelor degree in one of the following fields- public finance, accounting, public administration, law, taxation, business administration, or economics.

(2) Without prejudice to the qualifications and eligibility requirements in subsection (1) of this section, no person may be appointed or continue to serve as a director of the Authority if she/he:

(b) Is a member of the National Legislature;

(c) has less than 10 (ten) years of relevant work experience; and

(d) Is less than 40 years old.

Section 11: Loss of membership of the Board.

(1) The Minister shall terminate the service of a director on the occurrence to the Director of one of the following:

(a) Upon the expiry of the period of his/her appointment;

(b) A Director has been declared bankrupt or is unable to pay his/her debts by a court decision;

(c) A Director has a record of tax evasion;

(d) A Director is sentenced for criminal offence;

(e) A Director is convicted of an offence involving fraud or dishonesty;

(f) A Director is absent, without the permission of the Board, for three successive meetings of the Board of which he/she has had notice during a financial year;

(g) Upon notice in writing of the Director's intention to resign;

(h) A Director in the opinion of the majority of the Board members is considered incapable of performing his/her duties as a member; and,

(i) Any other circumstances that would cause a member to be disqualified for appointment as a Director;

(j) A Director is incapacitated by an illness or infirmity

(k) Upon the death of a Director.

(2) If a Director, other than the Commissioner-General, is not appointed to take office on the expiry of the term of an incumbent director; the incumbent director may continue to serve in office until a successor is appointed.

Section 12: Publication

The names of all Board members as first constituted, and every change in the membership thereof, shall be published in the Gazette.

Section 13: Part-Time and Full-Time Directors

All the Board of Directors with the exception of the Commissioner-General shall carry out the duties and functions of their office on a part-time basis.

Section 14: Directors' Fees and Expenses

(1) The Authority shall pay the Directors the fees fixed by regulations for attendance at meetings of the Board or any committee of Directors or for the performance of other duties as shall be provided for in the regulations.

(2) The Directors shall be paid reasonable travel and living expenses in the course of performing their duties away from their ordinary place of work as shall be provided for in the regulations.

Section 15: Powers and Duties of Chairperson

The Chairperson shall preside over meetings of the Board, exercise any powers and perform any duties and functions that are assigned by this Act.

CHAPTER IV

COMMISSIONER-GENERAL

Section 16: Appointment and Tenure of Commissioner-General

(1) The position of the Commissioner-General shall be filled through a competitive process by publicly advertising the position, selecting and recommending the most suitable candidate by the Minister for appointment by the President:

(a) In the first instance for a fixed term on performance-based contract of not more than five years and,

(b) Shall be eligible for a final period not exceeding five years.

(2) The Commissioner-General shall not hold any office other than that of Commissioner-General, nor engage in any occupation for financial reward or profit outside the office of the Commissioner-General;

(3) The Commissioner-General tenure may be terminated in accordance with Section 8 (3) above.

Section 17: Pay and Expenses

(1) The Authority shall pay the Commissioner-General remuneration and other benefits in accordance with the Regulations of the Authority; and

(2) The Commissioner-General shall be paid travel allowances and living expenses in the course of performing his/her duties while away from his/her ordinary place of work.

Section 18: Responsibilities of the Commissioner-General

(1) The Commissioner-General is the chief executive officer of the Authority and is responsible for:

(a) The general management and administration of the Authority;

(b) The day to day operations of the Authority;

(c) The management of the funds, property and business of the Authority

(d) The administration, organization and control of other officers and staff of the Authority;

(e) The effective administration and implementation of the provisions of this Act; and

(f) Any other powers or functions that may be assigned or delegated to him or her by the Minister in accordance with this Act and any other applicable law. Such a directive will be published in the official gazette or in a widely circulated newspapers and will only be issued in case of emergency to ensure the efficient and effective functioning of the Authority.

(2) The Commissioner-General shall keep the Minister informed of any matter that could materially affect public finances, and any other matter that the Commissioner-General considers necessary.

(3) The Commissioner-General shall assist and advise the Minister in the exercise of the Ministerial powers and in the performance of the Minister's duties and functions.

(4) The Commissioner-General shall meet regularly with the State Finance Ministers to consider the Ministers' views and recommendations related to the Authority's administration of any tax or program or carrying out of any activity on behalf of the GRSS.

Section 19: The Commissioner-General's Authorization

The Commissioner-General may authorize any person to exercise and perform powers, duties or functions of the Commissioner-General in case of absence or incapacity of the Deputy-Commissioner General.

CHAPTER V

DEPUTY COMMISSIONER-GENERAL

Section 20: Appointment and Tenure of Deputy Commissioner-General.

(a) The Deputy Commissioner-General shall be appointed by the President on the recommendation of the Minister for a fixed term performance-based contract of not more than five years, which may be renewed for one more term not more than five years;

(b) In the event of the absence or incapacity of, or vacancy in the office of the Commissioner-General, the Deputy Commissioner-General shall act and exercise the powers and perform the duties and functions of the Commissioner-General, but the Deputy Commissioner–General may not act for more than sixty consecutive days without the approval of the President;

(c) The Deputy Commissioner-General shall not hold any other office of trust or profit, other than that of D/CG, nor engage in any occupation for financial reward or any other gain outside the office of the D/CG; and

(d) The D/Commissioner-General tenure may be terminated in accordance with Section 8 (3) above.

Section 21: Remuneration and Expenses

The Authority shall pay the Deputy Commissioner-General remuneration and other benefits including travel out of place of work at the rate fixed by the Board in consultation with the Minister.

CHAPTER VI

MANAGEMENT OF THE AUTHORITY

Section 22: Meetings of the Board

(1) Subject to this Act, the Authority shall have a code of conduct to regulate its proceedings and business of any of its committees and may verify, suspend or revoke any such standing orders;

(2) The Board shall meet at such place or places, and at such time or times, as the Chairperson may determine, and shall meet at least once in every three months;

(3) An ordinary meeting of the Board may be convened after at least fourteen days following written notice to the members.

(4) The Chairperson may, at his/her direction, and shall at the written request of four or more members of the Board and within seven days of such request, convene an extraordinary meeting of the Board at such place and time as he/she may appoint;

(5) Minutes of each meeting of the Board or a committee shall be passed by a simple majority (50% +1) of the members present and shall be kept by the Secretary;

(6) The decision of the Board at any meeting on any matter shall be democratic, where the majority of the members are present and voting, and at all meetings the Chairperson shall have, in the event of a tie, a casting vote in addition to his/her deliberative vote;

(7) The Board may at any time and for any length of period, invite any person to attend any meeting of the Board for the purpose of assisting in technical advice to the Board in respect of any matter under consideration by the Board;

(8) Any person invited pursuant to subsection (7) above shall not be entitled to vote; and

(9) The validity of any proceeding of the Board shall not be affected by any vacancy in membership of the Board or by any defect in the appointment of any member.

Section 23: Committees of the Board

(1) For the better carrying into effect of the purposes for the Authority established, the Board may establish Committees as the Board shall deem appropriate.

(2) The Board shall appoint the chairperson of each committee from amongst the members.

(3) Each committee may invite any person to assist in technical advice.

Section 24: Advisory Role

The Board shall advise the Minister of Finance on matters relating to the general administration and enforcement of this Act.

Section 25: Limitations

Without prejudice to its oversight role under section 8, the Board shall not interfere with the work of the Commissioner-General or any other employee of the Authority:

(1) In the exercise of his/her powers or the performance of a duty or functions conferred to or delegated under this Act or other laws relevant to or the laws of the State; or

(2) On the day-to-day administration and enforcement of this Act.

Section 26: Duties of Directors

(1) Every director of the Authority, in exercising their powers and performing their duties and functions, shall:

(a) Act honestly and in a good faith, with a view of best interests of the Authority having regard to its mandate;

(b) Exercise the care, due diligence and skills that a reasonable prudent person would exercise in comparable circumstances;

(c) Disclose any interest in any proposed transaction or business with the Authority in writing to the Board indicating the nature and extent of the interest of the concerned director showing that such Director:

(i) Is a party to a proposed contract with the Authority; or

(ii) Is a director or officer of, or has an interest in, any person who is a party to a proposed contract with the Authority.

(2) The disclosure required by Subsection (1) shall be made:

(a) At the meeting of the Board at which the proposed contract is first considered;

(b) If the Director was not then connected to the proposed contract, at the first meeting of the Board after the Director becomes a party to;

(c) If the Director becomes interested after the contract is made, at the first meeting of the Board after the Director becomes interested; or

(d) If the Director was interested in the contract before becoming a Director, at the first meeting of the Board after becoming a Director.

(3) A Director referred to in subsection (1) shall not vote on any resolutions to approve the contract.

(4) If a Director of the Authority fails to disclose his/ her interest in a contract, a court may, on application of the Authority or on behalf of the National Government, set aside the contract on any terms that it deems fit.

CHAPTER VII
HUMAN RESOURCES

Section 27: Terms and Conditions of Employment and Remuneration

In the exercise of its responsibilities in relation to personnel management the authority shall:

(a) Determine its requirements with respect to human resources and provide for the allocation and effective utilization of human resources;

(b) Determine requirements for the training and development for its personnel and fix the terms and conditions on which that training and development shall be carried out;

(c) Provide for the classification of Authority positions and employees;

(d) Indicate the terms and conditions of employment, remuneration and expenses;

(f) Establish standards of discipline for its employees and prescribe the financial and other penalties, including suspension or termination of employment, and that may be applied for breaches of discipline, malpractices or misconduct and the circumstance and manner in which the Authority or by whom those penalties may be applied or may be varied or rescinded in whole or in part;

(i) Provide for any other matters that the Authority considers necessary for effective personnel management.

Section 28. Declaration of Assets and Financial Interests

(1) Every person shall, within one month of his/her appointment to the Authority, complete a statement of declaration of assets and financial interests in such form and contents as required by law.

(2) Every employee shall make a fresh declaration every year.

(3) If an employee's circumstances change (assets or financial interests), a new declaration shall be prepared as in sub-section (1).

(4) The declaration of assets shall be submitted as follows:

(a) To the Internal Audit Department within the Authority, who will be responsible for verifying the accuracy of the declaration;

(b) To the Anti-Corruption agency for the persons in Senior Management positions.

(5) Failure to comply with the disclosure of information or providing false information may result in the dismissal of an employee or refusal of an application for employment.

Section 29: Commissioner-General's Responsibilities

(1) The Commissioner-General shall apply the penalties, including suspension or termination of employment, and provide for termination or demotion of employees on behalf of the Authority as required by this Act and regulation;

(2) The Commissioner-General shall, on such terms and conditions as the Board shall determine, appoint other officers and staffs of the Authority subordinate to Commissioner-General as shall be required for the performance of the functions of the Authority;

(3) The Commissioner-General has full authority regarding hiring, firing, promotion, and disciplinary action subject to the personnel policies and procedures approved by the Board.

(4) The regulations of appointment, determination of conditions of service and of the employees of the Authority shall be passed by Council of Ministers before the Minister signs it.

Section 30: Group Insurance and Benefit Programs

The Authority shall establish or enter into a contract to acquire group insurance or benefit programs for its employees and may set any terms and conditions in respect of those programs including those relating to premiums, contributions, benefits, management and control and expenditures to be made from those contributions and premiums, and may audit and make contributions and pay premiums in respect of those programs.

Section 31: Pension and Severance

(1) The Authority shall make such provisions as it deems appropriate for the payment of pension, gratuity or other allowances in respect of the employees of the Authority on their retirement from the Authority as required by the Pension Act, 2012.

(2) Where Civil Servants are or any person employed by National government or a State institution is transferred to the Authority as an employee, that person shall be entitled to, under rules determined by the Board, the conversion of any leave, severance of benefits, or other benefits determined by the Board into a monetary value (transfer value) established on the date of transfer and shall on his/her ultimate retirement or resignation from the Authority be entitled to the lump sum payment of that amount (transfer value) in addition to any benefits accrued while being an employee of the Authority.

Section 32: Confidentiality

(1) Every member of the Board, the Commissioner General, or any other employee of the Authority in carrying out the provisions of this Act shall regard, and deal with, as confidential, all documents and information relating to the income, expenditure or other financial dealings or status of any particular taxpayer or other person involved in any operations in furtherance of the purposes of this Act, and all confidential instructions in respect of the administration of the Authority which may come into his/her possession or to his/her knowledge in the course of his/her duties.

(2) It shall be unlawful for employees in the discharge of their functions under this Act to exchange or furnish each other with information or documents concerning any taxpayer.

(3) This Act shall not authorize the disclosure to the Board any information that directly or indirectly reveals the identity of the person, organization or business to which it relates.

Section 33. Exemption from personal liability

No member of the Board, any committee of the Board, or an employee of the Authority shall, in his/her personal capacity, be liable in civil or criminal proceedings, in respect of any act or omission done in good faith in the performance of his/her duties or functions under this Act.

CHAPTER VIII

INTERNAL AUDIT

Section 34. Establishment of Internal Audit

(1) Within the Authority, there shall be established an office of Internal Audit, which shall be headed by a Commissioner.

(2) The Board, through the Commissioner-General, shall appoint an individual who has not less than 10 years of work experience as an accountant, or such other expertise or experience as the Board considers appropriate for appointment as a Commissioner in charge of Internal Audit.

Section 35. Duties of Internal Audit

(1) The Commissioner in charge of Internal Audit shall carry out the internal audit responsibilities; and investigation responsibilities for the Authority and make recommendations to the Board and Commissioner-General based on the facts of audits and investigations.

(2) The Board shall assign by written notice to the Commissioner in charge of Internal Audit additional functions that are not inconsistent with the functions in subsection(3) below.

(3) The Board or the Commissioner-General shall not issue any order or direction, which would prevent or hinder the Commissioner in charge of Internal Audit from properly performing the functions under this section.

Section 36. Authority of Internal Audit

(1) For the purpose of carrying out the functions in this section the Commissioner in charge of Internal Audit shall:

(a) Audit any branch of the Authority's operation, including:

(i) Reviewing and appraising any policy, practice or procedure;

(ii) Analyzing and verifying accounts, financial transactions and reports;

(iii) Examining any system used by the Authority to carry out its responsibilities, functions and powers including records and financial statements of any person or business entity;

(2) For the purpose of carrying out the functions of this section the Commissioner in charge of Internal Audit shall require the Authority, or an employee to:

(a) Provide written information or documents, books of accounts and asset inventory to the Commissioner in charge of Internal Audit; or

(b) Attend at a reasonable time, date and place specified in the notice to answer questions of the Commissioner in charge of Internal Audit.

(3) A notice under sub-section (1) and (2) above shall specify the reasonable place and date, being not less than 5 working days after the date of service of the notice, for the production of the information, documents, and books of account and asset inventory.

(4) A refusal by an employee of the Authority to comply with a request for information under sub-section (3) above may subject him/her to immediate disciplinary action, whose result may include, but is not limited to, warning, suspension, or dismissal.

Section 37 Annual Report

The Commissioner of Internal Audit shall prepare written quarterly, bi-annual and annual reports in each financial year, which shall be presented to the Board.

CHAPTER IX

REVENUE COLLECTIONS BY THE AUTHORITY

Section 38: Allocations to be paid to the Authority Account

All allocations payable to the Authority under this Act shall be paid into a bank account of the Authority and shall be disbursed in accordance with Section 40.

Section 39: Deposit and Reporting of the Revenue

(1) Revenue collected shall be deposited daily, but not later than the following business day;

(2) Revenue shall be reported not later than 15th day of the month following the month in which it was received.

Section 40: Funds of the Authority

(1) The funds of the Authority shall consist of:

(a) An operating budget for the Authority as appropriated by the National Legislature;

(b) In the early stages of NRA development, the Ministry of Finance shall issue regulatory framework as follows:

(i) Up to two percent (2%) of the annual collections for the first two years for establishment of the institutional and personnel capacity-building; and

(ii) Up to one percent (1%) for the third, fourth, and final year by which the institution would have been fully functional.

(2) The Revenues of the Authority:

(a) All revenues collected by or paid to the Authority under this Act shall be remitted into the consolidated account in the Bank of South Sudan (BSS);

(b) As specified in sub-section 40(1)(a) shall be payable to the Authority in monthly instalments on or before the 15th day of the following collection; and

(c) As specified in the Section 40(1)(b) shall be payable to the Authority within one month after the end of the three-month period.

Section 41: Funds Review

The Board shall review and recommend to National and State branches institution of the Authority revision of the percentages of revenue referred to in Section 40(1) above as stated in the Financial Act every year.

Section 42: Funds not expended

(1) Any funds which were not spent, shall be remitted to the consolidated account in the Bank of South Sudan.

(2)The Authority may;

(a) Accept money by way of grants or donations from any legal source in or outside South Sudan, for institutional and personnel capacity building and development; and

(b) Charge and collect fees in respect of programs, publications, seminars, documents, consultancy services and other services provided by the Authority except forms and instructions materials which must be provided without charge.

Section 43: Additional funds

The GRSS shall, as part of the budget process, allocate funds annually representing the difference between the estimated operating and capital budget of the Authority and funds in section 42.

Section 44: Investment

The Authority shall, subject to the approval of the Board, invest in such a manner as it deems fit, such reserved funds not immediately required for activities of its functions.

Section 45: Expenditures

(1) There shall be paid from the budget of the Authority:

(a) The salaries and allowances of the employees of the Authority;

(b) Fees, travel and subsistence allowances for the members of the Board or committee of the Board when engaged on the business of the Authority; and

(c) Any expenses incurred by the Board in the performance of its duties.

(2) In carrying out its responsibilities, the Authority shall be authorized to spend but report the following proceeds from:

(a) Sale, exchange, lease, transfer or other gains from disposition of property;

(b) Fees for the provision of a service or the use of a facility or for a product;

(c) Payments received under the contracts entered into by the Authority.

CHAPTER X

REPORTS AND FINANCIAL STATEMENTS

Section 46: Accounts

The Board shall cause to be kept books of account and other records relating to the financial affairs of the Authority in a form which shall conform to the Generally Accepted Accounting Principles (GAAPs).

Section 47: Audit and Assessments

(1) The Auditor-General or person nominated by the Board and approved by the Auditor-General is the External Auditor of the Authority and shall:

(a) Annually audit and provide an opinion to the Authority and the Board on the financial statements of the Authority;

(b) Periodically assess, on the basis that the Auditor-General determines to be reasonable, the fairness and reliability of the information about the Authority's performance included in its annual reports; and

(c) Provide the Minister and the Commissioner-General and the Board with copies of audit reports and assessments carried out under this section.

(2) The Minister shall table the Authority's audited financial statements before the Assembly on any of the first fifteen days on its sitting.

Section 48: Corporate Business Plan

(1) The Minister shall submit the corporate business plan of the Authority to the Council of Ministers for approval;

(2) The corporate business plan must cover:

(a) The Authority's objectives;

(b) The strategies that the Authority intends to use to achieve its objectives, including:

(i) Operational and financial strategies; and

(ii) Human resource strategies and their impact on overall salaries and benefits.

(c) The Authority's expected performance;

(d) The Authority's operating and capital budgets and revenues from the conduct of the Authority's operations.

(3) The Authority must act in a manner consistent with its most recent corporate business plan and comply.

(4) The Minister shall submit the Authority's Corporate Plan to the National Legislative Assembly for approval.

(5) The Authority shall disseminate the approved Corporate Plan to the public.

CHAPTER XI
INTEGRITY

Section 49: Internal Affairs

(1) There shall be established an office of Internal Affairs, which shall be headed by the Commissioner.

(2) An internal affairs functions and roles shall be to promote, investigate and report on integrity.

(3) The duties of the Internal Affairs function will include:

(a) Enforcing rules, regulations, or orders governing the NRA

(b) Investigating on the facts regarding allegations of malpractice or other complaints against an employee, exporter, importer or any other business interest dealing with the NRA;

(c)Securing the assets and financial interests of the NRA

(d) Processing and verifying asset declarations made by an employee or prospective employee, exporter or importer; and

(e) Such other duties as the Board shall assign.

(4) The Internal Affairs shall be responsible for investigating allegations and submitting investigations to the Ministry of Justice through the legal advisor of the Authority;

(5) For the purpose of carrying out the functions of this section, the Commissioner may require the Authority, any person, exporter/importer, or an employee to:

(a) Provide written information or documents, books of accounts and asset inventory to the Commissioner; or

(b) Attend a reasonable time, date and place specified in the notice to answer questions of the Commissioner.

(6) A notice under sub-section (5) shall specify the reasonable place and date, being not less than 5 working days after the date of

service of the notice, for the production of the information, documents or books of accounts; and

(7) A refusal by an employee of the Authority to comply with a request for information under sub-section (3) above may subject him/her to immediate disciplinary action, whose result may include, but is not limited to, warning, suspension, or dismissal.

CHAPTER XII
TRANSITIONAL MEASURES

Section 50: Powers, Duties and Functions

Any power, duty or function that, immediately before the coming into force of this Act, was vested in the Minister, Deputy Minister, Undersecretary, or any employee in the Ministry of Finance and Economic Planning, by virtue of an act of or any instrument made under an Act or under a contract, lease, license or other documents is transferred to the Commissioner-General or to the appropriate department of the Authority, as the case may be.

Section 51: Initial Staffing

(1) The Authority shall have a new workforce selected through a general advertisement of all positions;

(2) Employment priority shall be given to current employees of the institutions making up the NRA, provided that they have the appropriate academic qualifications, relevant work experience and integrity required for employment in this new institution;

(3) Prior to commencement of the initial staffing, rules, regulations and procedures for redeployment shall be developed by the Board and the National Ministry of Public Service, and to be approved by the Minister;

(4) Those employees of the Directorate of Customs and the Directorate of Taxation who will not be absorbed into the Authority shall be redeployed to other government institutions or retired.

Section 52: Employees on Probation

(1) Every employee of the Authority is considered to be on probation with the Authority until the end of any period established by the Board; and

(2) During probation the Board or Commissioner-General may require employees to undertake an elevation of education, training, knowledge and abilities.

Section 53: Reference to Persons in Other Laws

(1) Every reference to the Minister or any person under their authority in documents issued in the name of a former Minister, Department, Deputy Minister, Under-Secretary, Director General of Customs, Director General of Taxation or other person empowered to take an action or receive something for those laws and Acts in Schedule (I) and the regulations made thereto are to be read, unless the context otherwise requires , as a reference to

the Authority, the Commissioner-General or an employee of the Authority, as the case may be.

(2) All orders, rules, regulations, decisions, directions, licenses, authorizations, certificates, consents, approvals, declarations, designations, permits, registrations, rates or other documents that are enforced on the coming into force of this Act will continue in force as if they were made or issued by the Commissioner-General or an employee of the Authority, as the case may be until they expire or are repealed, replaced, rescinded or altered.

Section 54: Commencement of Legal Proceedings

(1) Any action, suit or other legal proceeding in respect of any obligation or liability incurred by the predecessor body may be brought against the Authority.

(2) Any action, suit or other legal proceeding to the predecessor body which is pending in court on the coming into force of this Act, shall be continued by or against the Authority.

Section 55: Evidentiary Presumption

Every affidavit sworn, or document purporting to be certified, by an officer of the predecessor body has the same value as if it were sworn or certified by an employee of the Authority.

Section 56: Continuity of the Existing Structures

The currently existing Directorate of Taxation and the Directorate of Customs will continue their operations until such time as the new NRA structure is fully established.

(SCHEDULE I)

LAWS ADMINISTERED BY THE AUTHORITY

The National Revenue Authority shall be competent to initiate legislation process or amendment on the following Laws:

(1) Investment Promotion Act,2008

(2) Taxation Act, 2009, as amended 2011 and 2012

(3) Public Financial Management and Accountability, 2011

(4) Pension Act, 2012

(5) Customs Services Act,2013

(6) Other Laws related thereto

Assent of the President of the Republic of South Sudan

In Accordance with Article 85 (1) of the Transitional Constitution of South Sudan, 2011, I, Gen. Salva Kiir Mayardit, President of the Republic of South Sudan, hereby Assent to the National Revenue Authority Act, 2016 and sign it into law

Signed in Juba this 25th Day of the Month of May in the Year 2016



Gen. Salva Kiir Mayardit
President
Republic of South Sudan
RSS - Juba.